

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rachel Murgio	Team: Squad #02	CCRB Case #: 202000909	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 01/31/2020 7:41 PM	Location of Incident: 244 Malcolm X Boulevard	18 Mo. SOL 3/17/2022	Precinct: 81
Date/Time CV Reported Sun, 02/02/2020 2:57 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 02/02/2020 2:57 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Dustin Olivos	19950	950978	083 PCT
2. POM Job Bellevue	16310	945501	081 PCT
3. POM Arturo Sanchez	08836	963740	081 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Domonic Gibson	19664	958628	SRG 3
2. SGT David Lamarre	03547	947929	SRG 3
3. POM Asar Rhymer	19679	959131	SRG 3
4. POM Gerlando Marchetta	24596	962573	SRG 3
5. POM Steven Hong	08345	960677	SRG 3
6. POM Dmitry Bondar	11633	959497	SRG 3
7. POM Junsun Park	28223	959875	SRG 3
8. POM Dylan Mattern	26213	964150	081 PCT
9. POM Seth Dubrino	01238	960482	081 PCT
10. POM Derval Harris	9689	967542	081 PCT
11. POM Thomas Donnelly	04376	960473	083 PCT
12. POM Christophe Chacon	11082	963446	083 PCT
13. POM Thomas Coleman	29737	953765	E S U
14. POM Gerson Abellard	14412	960117	083 PCT
15. POM Brandon Diaz	18233	963959	083 PCT
16. POM Maode Lin	15021	956851	083 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . POM Job Bellevue	Discourtesy: Police Officer Job Bellevue spoke discourteously to individuals.	A . Exonerated
B . POM Dustin Olivos	Force: Police Officer Dustin Olivos used physical force against an individual.	B . Substantiated
C . POM Dustin Olivos	Force: Police Officer Dustin Olivos used physical force against § 87(2)(b)	C . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
D . POM Arturo Sanchez	Abuse: Police Officer Arturo Sanchez interfered with § 87(2)(b) use of a recording device.	D . Unsubstantiated

Case Summary

On February 2, 2020, § 87(2)(b) filed this complaint online via the CCRB's website. This case was initially assigned to Supervising Investigator Jean-Paul Lozada. It was sent to the Mediation Unit on March 5, 2020. It was returned to the Investigation Division on September 11, 2020, at which point it was reassigned to Investigator Rachel Murgo.

On January 31, 2020, § 87(2)(b) a member of the press, was following a protest in Brooklyn while filming with a video camera. At approximately 7:41 p.m. when the protest reached the intersection of Malcolm X Boulevard and Hancock Street (at 244 Malcolm X Boulevard), protestors began running and scattering. § 87(2)(b) stepped off the sidewalk between two parked cars to avoid the runners but did not step into traffic. Police Officer Job Bellevue of the 81st Precinct yelled, "Back the fuck up!" at protestors (**Allegation A: Discourtesy – Word – Exonerated**). Police Officer Dustin Olivos of the 83rd Precinct pushed an unidentified civilian, then approached § 87(2)(b) and pushed her while telling her to get on the sidewalk (**Allegation B: Force – Physical force – Substantiated** and **Allegation C: Force – Physical force – Substantiated**). As § 87(2)(b) walked away, she turned back to film with her camera. Police Officer Arturo Sanchez of the 81st Precinct allegedly shined his flashlight into her camera lens, obscuring the footage (**Allegation D: Abuse of Authority – Interference with recording – Unsubstantiated**). § 87(2)(b) was not arrested or summonsed during this incident.

§ 87(2)(b) provided footage that she captured during the incident, which is linked to IA #17 and summarized in IA #53 (Board Review 01, 02). Body-worn camera (BWC) footage received for this case is linked to IAs #94, 97, 110-114, and 119 (Board Review 03-10) and summarized in IAs #105, 115-117, and 120 (Board Review 11-15).

Findings and Recommendations

Allegation (A) Discourtesy: Police Officer Job Bellevue spoke discourteously to individuals.

§ 87(2)(b) provided a telephone statement on February 7, 2020 (Board Review 19) and was interviewed at the CCRB on February 12, 2020 (Board Review 20). Police Officer Olivos was interviewed at the CCRB on December 2, 2020 (Board Review 21). Police Officer Bellevue was interviewed at the CCRB on January 4, 2021 (Board Review 22). Police Officer Arturo Sanchez was interviewed at the CCRB on April 8, 2021 (Board Review 23).

It is undisputed that Police Officer Bellevue yelled, "Back up! Back the fuck up!" at civilians during the protest on January 31, 2020.

When asked for a reason why he yelled, "Back the fuck up," Police Officer Bellevue said that it was a protest, and people were not moving or responding to his initial instructions to back up. He used profanity after giving instructions without profanity to highlight the seriousness of his command and that the people needed to move.

Per § 87(2)(b) account, shortly before Police Officer Bellevue used profanity, a large crowd of approximately 15-20 protestors ran screaming through the area. § 87(2)(b) video footage, linked to IA #17 (Board Review 01), corroborates this description.

Patrol Guide Procedure 200-02 requires officers to "maintain a higher standard of integrity than is generally expected of others" and to "respect the dignity of each individual and render...services with courtesy and civility" (Board Review 24).

DAO-DCT Case Number 2018-18951 states that “there are certain situations where profane remarks made during a stressful or chaotic situation would not constitute misconduct” (Board Review 25).

The scene described by § 87(2)(b) and shown on her camera footage, with protesters filling the sidewalk, running and screaming, § 87(2)(g)

§ 87(2)(b). It is therefore recommended that **Allegation A** be exonerated.

Allegation (B) Force: Police Officer Dustin Olivos used physical force against an individual.

Allegation (C) Force: Police Officer Dustin Olivos used physical force against § 87(2)(b)

§ 87(2)(b) described Police Officer Olivos approaching her while she stood between parked cars to avoid being knocked over by the crowd. Police Officer Olivos told § 87(2)(b) to get on the sidewalk, and § 87(2)(b) showed him her press pass and said that she was a member of the press. Police Officer Olivos looked at the press pass, then placed his hand on the back of § 87(2)(b) right shoulder and pushed her towards the sidewalk, while again telling her to get on the sidewalk. § 87(2)(b) stumbled but did not fall. She turned and again told Police Officer Olivos that she was a member of the press and asked why he shoved her. Police Officer Olivos again told § 87(2)(b) to get on the sidewalk (though she was on the sidewalk at the time) and shoved one of her shoulders again. Police Officer Olivos then said, “Say goodbye.” § 87(2)(b) did not mention Police Officer Olivos shoving another civilian.

Beginning at approximately timestamp 0:06, § 87(2)(b) footage (IA #17, Board Review 01, summarized in IA #53, Board Review 02) shows Police Officer Olivos shoving an unidentified male civilian who is wearing a black hat, black jacket, glasses, and a green or tan backpack, from behind while the civilian is walking in the direction of the flow of people. The civilian appears to stumble forward as a result. The footage does not clearly capture Police Officer Olivos shoving § 87(2)(b). Beginning at approximately timestamp 0:11, it seems that § 87(2)(b) says something to Police Officer Olivos. However, given the noise at the location, whatever she says is not clearly captured.

Beginning at timestamp 10:52, BWC footage filmed by Police Officer Dylan Mattern of the 81st Precinct (linked to IA # 174, Board Review 26 and summarized in IA #105, Board Review 11) shows Police Officer Olivos shoving § 87(2)(b) with his right hand while she walks on the sidewalk holding her camera. Immediately after pushing her, Police Officer Olivos says, “Say goodbye.” § 87(2)(b) appears to stumble as a result of the shove. A subclip of the footage which captures this moment is linked to IA #181 (Board Review 28).

Police Officer Olivos failed to provide a reason for why he shoved either the unidentified male civilian or § 87(2)(b). He denied shoving § 87(2)(b) or anyone else on the date of the incident. When shown § 87(2)(b) footage from the incident (linked to IA #17, Board Review 01), Police Officer Olivos said that he recognized himself in the video, “telling people to back up” at approximately twenty seconds into the video. After being shown the video multiple times at normal and slow speeds, Police Officer Olivos denied that he took any actions besides verbally telling people to back up. He stated that he could not tell if he made contact with the unidentified male civilian’s backpack. He did not recall what his reason was for moving civilians back at the moment depicted in § 87(2)(b) video. After viewing BWC from Police Officer Seth Dubrino of the 81st Precinct (linked to IA #111, Board Review 06) and from Police Officer Sanchez (linked to IA #113, Board Review 08), Police Officer Olivos had no further recollection of the incident. He denied

having any physical contact with § 87(2)(b)

Though Police Officer Olivos's BWC captured footage of parts of the larger incident (Board Review 10) it did not capture any footage of the portion of this incident during which he pushed § 87(2)(b) and the unidentified individual.

Patrol Guide Procedure 221-01 states that "Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances" (Board Review 27).

Though Police Officer Olivos denied pushing either § 87(2)(b) or the unidentified individual, based on § 87(2)(b) video and the BWC footage from the other officers in the vicinity, § 87(2)(g)

While he and other officers had been giving instructions to the crowd to back up and get on the sidewalk, at the time he pushed both § 87(2)(b) and the unidentified male, both of them appeared to have already been moving in the direction that the officers had been instructing the civilians to move, and § 87(2)(b) a journalist with a press pass, was actively filming the incident. § 87(2)(g)

It is therefore recommended that **Allegations B and C be substantiated.**

Allegation (D) Abuse of Authority: Police Officer Arturo Sanchez interfered with § 87(2)(b) use of a recording device.

Approximately 30 seconds into the footage submitted by § 87(2)(b) linked to IA #17 and summarized in IA #53 (Board Review 01, 02), Police Officer Arturo Sanchez is seen shining his flashlight into § 87(2)(b) camera for several seconds, obscuring her footage.

Police Officer Sanchez testified that it was dark during the incident, and civilians were dispersing from an area where SRG officers were attempting to make an arrest. He shined his flashlight on people in front of him to ensure that none of them had weapons due to his "generalized concern" and belief that, "you never know if anyone has a weapon nowadays." His scan with the flashlight did not reveal any weapons. While he noted that a female in the crowd had a recording device, he did not believe that she was filming at the time. He did not recall whether he ever shined his flashlight at § 87(2)(b) camera but denied ever intentionally shining his flashlight at § 87(2)(b) camera lens or being aware during the incident that he was shining a flashlight into § 87(2)(b) camera lens.

§ 87(2)(g) it is clear that Police Officer Sanchez's flashlight briefly obscured § 87(2)(b) camera, § 87(2)(g)

It is therefore recommended that **Allegation D be unsubstantiated.**

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 17).

- Police Officer Job Bellevue has been a member of service for 13 years and has been a subject in 17 CCRB complaints and 41 allegations, none of which were substantiated.
§ 87(2)(g)
- Police Officer Dustin Olivos has been a member of service for nine years and has been a subject in three CCRB complaints and seven allegations, none of which were substantiated.
§ 87(2)(g)
- Police Officer Arturo Sanchez has been a member of service for four years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- On March 5, 2020, this case was sent to the mediation unit. On September 11, 2020, the case was returned to investigation at § 87(2)(b) request.
- As of April 27, 2021, the New York City Office of the Comptroller had no record of a Notice of Claim being filed regarding this complaint (Board Review 16).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 2

Investigator: Rachel Murgu Inv. Rachel Murgu 05/19/21
Signature Print Title & Name Date

Squad Leader: Alexander Opoku-Agyemang IM Alexander Opoku-Agyemang 5/19/2021
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date